

Multiple Choice (10 marks)

1. The president, vice-president, and U.S. civil officers can be impeached. Which of the following is not true about impeachment?
 - (a) Grounds include high crimes and misdemeanors
 - (b) A majority vote in the House is necessary to invoke charges of impeachment
 - (c) Grounds include treason and bribery
 - (d) A three-fourths vote in the Senate is necessary to convict and remove from office
2. Hume's attack on natural law is founded on his argument that:
 - (a) We cannot objectively know what is morally right or wrong.
 - (b) Natural law is backward-looking.
 - (c) There is no such thing as a social contract.
 - (d) Natural law fails to protect the state against attacks.
3. There is a voting law that is going to be reviewed by the court. If the law is upheld, what must be true?
 - (a) The law is necessary for a legitimate government purpose.
 - (b) The law is rationally related to an important government purpose.
 - (c) The law is unnecessarily related to a compelling government purpose.
 - (d) The law is substantially related to an important government purpose.
 - (e) The law is necessary to achieve a compelling government purpose.
4. Which of the following articles are not qualified rights?
 - (a) Article 19
 - (b) Article 11
 - (c) Article 12
 - (d) Article 9
 - (e) Article 3
5. Which statement is closest to characterizing the principal difference between the positions adopted by Hobbes and Locke?
 - (a) They differ in their views about the necessity of a social contract.
 - (b) They disagree about the role of law in society.
 - (c) They have contrasting views on the role of religion in society.
 - (d) They have different ideas about the importance of education.
 - (e) They have different perspectives on economic policies.

True / False (10 marks)

Answer True or False

6. True or False: Passive personality jurisdiction is determined by the country of residence of the offender regardless of the victim's nationality.
7. True or False: The protective principle of jurisdiction is based on the nationality of the offender involved in the crime.
8. True or False: Accepting an attorney's services without a fee agreement results in a void contract, as no legal obligations exist.
9. True or False: The doctrine of 'margin of appreciation' was first articulated in the case of *Handyside v UK* (1976) by the European Court of Human Rights.
10. True or False: A conflict between a congressional act and a treaty is resolved through a national referendum.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss how Dworkin's assertion that "the law is the only guide for ethical behaviour" shapes his arguments in "Justice for Hedgehogs" and its implications for constitutional law.
12. Discuss the admissibility of Officer Friendly's testimony regarding Polly's admission of negligence in the wrongful death case against her, considering the principles of party admissions in constitutional law.

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